

SENATE No. 1692

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to self-defense sprays.

PETITION OF:

NAME:

Ryan C. Fattman

DISTRICT/ADDRESS:

Worcester and Hampden

SENATE No. 1692

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1692) of Ryan C. Fattman for legislation relative to possession of self-defense sprays. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to self-defense sprays.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 36 of Chapter 135 of the Acts of 2024, is hereby amended by deleting it in its
2 entirety, and inserting in place thereof the following:-

3 Section 122D. No person shall purchase or possess self-defense spray who:

4 (i) in a court of the commonwealth, has been convicted or adjudicated a youthful offender
5 or delinquent child as defined in section 52 of chapter 119 for the commission of: (A) a felony;
6 (B) a misdemeanor punishable by imprisonment for more than 2 years; (C) a violent crime as
7 defined in section 121; (D) a violation of a law regulating the use, possession, ownership,
8 transfer, purchase, sale, lease, rental, receipt or transportation of weapons or ammunition for
9 which a term of imprisonment may be imposed; or (E) a violation of a law regulating the use,
10 possession or sale of a controlled substance as defined in section 1 of chapter 94C including, but
11 not limited to, a violation under said chapter 94C; provided, however, that except for the
12 commission of a violent crime or a crime involving the trafficking of controlled substances, if the

person has been so convicted or adjudicated or released from confinement, probation or parole supervision for such conviction or adjudication, whichever occurs last, for 5 or more years immediately preceding the purchase or possession, that person may purchase or possess self-defense spray;

(ii) in another state or federal jurisdiction, has been convicted or adjudicated a youthful offender or delinquent child for the commission of: (A) a felony; (B) a misdemeanor punishable by imprisonment for more than 2 years; (C) a violent crime as defined in section 121; (D) a violation of a law regulating the use, possession, ownership, transfer, purchase, sale, lease, rental, receipt or transportation of weapons or ammunition for which a term of imprisonment may be imposed; or (E) a violation of a law regulating the use, possession or sale of a controlled substance as defined in section 1 of chapter 94C; provided, however, that, except for the commission of a violent crime or a crime involving the trafficking of weapons or controlled substances, if the person has been so convicted or adjudicated or released from confinement, probation or parole supervision for such conviction or adjudication, whichever occurs last, for 5 or more years immediately preceding the purchase or possession and that applicant's right or ability to possess a rifle or shotgun has been fully restored in the jurisdiction wherein the subject conviction or adjudication was entered, then that person may purchase or possess self-defense spray;

(iii) has been committed to any hospital or institution for mental illness unless the person obtains, prior to purchase or possession, an affidavit of a licensed physician or clinical psychologist attesting that such physician or psychologist is familiar with the applicant's mental illness and that in the physician's or psychologist's opinion the applicant is not disabled by such an illness in a manner that shall prevent the applicant from possessing self-defense spray;

(iv) is or has been in recovery from or committed based upon a finding that the person is a person with an alcohol use disorder or a substance use disorder or both unless a licensed physician or clinical psychologist deems such person to be in recovery from such condition, in which case, such person may purchase or possess self-defense spray after 5 years from the date of such confinement or recovery; provided, however, that prior to such purchase or possession of self-defense spray, the applicant shall submit an affidavit issued by a licensed physician or clinical psychologist attesting that such physician or psychologist knows the person's history of treatment and that in that physician's or psychologist's opinion the applicant is in recovery;

(v) at the time of the application, is younger than 15 years of age;

(vi) at the time of the application, is at least 15 years of age but less than 18 years of age unless the applicant submits with the application a certificate from the applicant's parent or guardian granting the applicant permission to apply for a card;

(vii) is an alien who does not maintain lawful permanent residency or is an alien not residing under a visa pursuant to 8 U.S.C. § 1101(a)(15)(U), or is an alien not residing under a visa pursuant to 8 U.S.C. § 1154(a)(1)(B)(ii)(I) or is an alien not residing under a visa pursuant to 8 U.S.C. § 1101(a)(15)(T)(i)(I)–(IV);

(viii) is currently subject to: (1) an order for suspension or surrender issued pursuant to section 3B or 3C of chapter 209A or section 7 of chapter 258E; or (2) a permanent or temporary protection order issued pursuant to chapter 209A or section 7 of chapter 258E; or

(ix) is currently the subject of an outstanding arrest warrant in any state or federal jurisdiction.

57 Whoever purchases or possesses self-defense spray in violation of this section shall be
58 punished by a fine of not more than \$1,000 or by imprisonment in a house of correction for not
59 more than 2 years or both such fine and imprisonment.